

25VECV02475 25VECV02475

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-18

Motion: MOTION TO COMPEL COMPLIANCE FROM PLAINTIFF MARVIN FLORIAN WITH RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

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Case Number: 25VECV02475 Hearing Date: August 18, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

LORENA RANGEL DE

REYES, an individual; CARLOS REYES, an individual; DEREK RANGEL, an individual; SERGIO REYES, an individual; EDUARDO REYES, an individual; JEFFREY GARCIA, an individual; and DAVID PINEDA, an individual,

Plaintiff,

vs.

AHANG MIRHOJAE, an individual, aka Ahang

Zarin Kelk; ALI REZA MIRSHOJAE and NASTARAN ZARRIN KELK, aka Nastavan Zarrin Kauppinen, Co-Trustees of the Jason B. Mirshojae Trust u/t/d/ June 19, 2019; and DOES 1 through 25, inclusive,

Defendants.

CASE NO: 25VECV02475

[TENTATIVE]

ORDER RE:

MOTION

TO COMPEL COMPLIANCE FROM PLAINTIFF MARVIN FLORIAN WITH RESPONSES TO REQUEST
FOR

PRODUCTION

OF DOCUMENTS, SET

ONE

Dept. W

8:30 a.m.

August 18, 2026

[TENTATIVE] ORDER: The Court GRANTS

Moving Defendant's Motion to Compel Compliance. The Court also GRANTS Moving
Defendant's request for discovery sanctions in the modified amount of \$924.00.

Background

This

is a habitability case. Defendants are Ahang Mirshojae, Ali Reza Mirshojae, and
Nastaran Zarrin Kelk, Co-Trustees of the Jason B. Mirshojae Trust. Defendants
own a 10-bedroom rental property located at 21909 Elkwood Street, Canoga Park,
CA 91304. Plaintiffs, Lorena Rangel de Reyes, Carlos Reyes, Derek Rangel,
Sergio Reyes, Eduardo Reyes, Jeffrey Garcia, and David Pineda, were residents
of this property from February 2020 to August of 2024. The primary lessors were
Plaintiffs Lorena and Carlos Reyes.

Plaintiffs allege numerous habitability issues plagued this property,
including: unscheduled rent increases, repeated plumbing breakdowns, Defendant
Ahang growing marijuana in one of the guest rooms, multiple invasions of
privacy by Defendant Ahang, electricity and water blackouts, and threats of
physical violence by Defendant Ahang.

On May 2, 2025, Plaintiffs brought suit against Defendants, alleging
eight causes of action: 1) wrongful eviction; 2) violation of CIV § 52.1; 3)
breach of the covenant of quiet enjoyment; 4) breach of contract; 5) unfair

competition; 6) violation of LA Municipal Code Chapter XV § 151.05(A); 7) breach of implied warranty of habitability; and 8) tortious failure to provide habitable premises.

Now, Moving Defendant

Ahang Mirhojae moves to compel Plaintiff Marvin Florian into compliance with his responses to Requests for Production, Set One. Moving Defendant also requests \$1,749.00 in discovery sanctions.

Discussion

i)

Discovery

Moving Defendant moves

to compel a compliant response from Plaintiff Marvin Florian as to Requests for Production, Set One. (Mot. to Compel, p. 5:7-17.) Specifically, Moving Defendant moves to compel Plaintiff to produce documents related to RFPs, Nos. 3, 6, 8, 10, 12-20, 23-24, and 29-31.

Under CCP § 2031.320, “[i]f a party filing a response to a demand for inspection, copying, testing, or sampling under Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance.” (CCP § 2031.320(a).)

Here, Moving Defendant establishes that Plaintiff Marvin Florian produced multiple discovery responses stating his intent to comply, but failed to produce any responsive documents. Moving Defendant explains that on February 4, 2026, Plaintiff Marvin Florian served verified responses to Moving Defendant's Request for Production, Set One. (Do Decl. ¶ 2.) In response, to RFPs Nos. 3, 6, 8, 10, 12-20, 23-24, and 29-31, Plaintiff stated that he would produce responsive documents. (See e.g. Mot. to Compel, Ex. C, p. 4:10-19 [“Plaintiff will produce non-privileged, responsive documents in her possession, custody, or control. Plaintiff is in the process of requesting records from LAPD in regard to the instant matter. Plaintiff does not have those LAPD documents at this time and will provide those LAPD documents, LAPD Body Cam Video, Police reports and other related LAPD information once received by Plaintiff . . . Discovery ongoing and continuing. Responding party will provide further documents upon

receipt”].) However, Plaintiff never actually produced any of these promised documents. (Do Decl. ¶ 3.)

In a subsequent email exchange, Plaintiff acknowledged this lack of supplemental response and agreed to produce the documents by March 23, 2026. (Id. ¶ 5.) To date, plaintiff has still not produced these documents. (Id. ¶ 6.) Thus, Plaintiff failed to permit inspection of documents he agreed to produce. Notably, this motion is unopposed.

For these reasons, the Court GRANTS Moving Defendant's Motion to Compel Compliance. Plaintiff Marvin Florian is ordered to produce responsive documents to RFPs Nos. 3, 6, 8, 10, 12-20, 23-24, and 29-31.

ii)

Sanctions

Moving Defendant also requests \$1,749.00 in discovery sanctions against Plaintiff and his attorney of record. (Mot. to Compel, p. 8:15.)

Under CCP § 2031.300, “the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)” for any party who engages in an abuse of the discovery process. (CCP § 2031.300(c).) Failing to respond to or submit to an authorized discovery request constitutes an abuse of the discovery process under CCP § 2023.010(d). (CCP § 2023.010(d).)

Here, Plaintiff Marvin Florian failed to produce documents in response to multiple RFPs, after expressly stating the documents would be produced. This clearly amounts to an abuse of the discovery process, meaning sanctions are appropriate.

However, the Court finds Moving Defendant's requested amount unreasonable. Here, Moving Defendant states that they spent 8.1 hours “researching, preparing, and drafting this motion” and anticipate spending 1.5 hours preparing a Reply, and 1 hour attending the hearing. (Do Decl. ¶ 7.) The Court takes multiple issue with this request. First, the motion is unopposed, so the 1.5 hours in anticipate billing can be reduced to 0. Second, the Court knows the hearing on this motion will not take an hour. The Court reduces this request to 0.5 hours. Third, the Court finds 8.1 hours of work for a simple motion to compel compliance unreasonable. The Court reduces these hours to 5.1. This brings Moving Defendant's total hours to 5.6. Billed at \$165 an hour, this

brings Moving Defendant's total reasonable costs to \$924.

For these reasons, the Court GRANTS Moving Defendant's request for discovery sanctions in the modified amount of \$924.00.

Conclusion

The Court GRANTS Moving Defendant's Motion to Compel Compliance. The Court also GRANTS Moving Defendant's request for discovery sanctions in the modified amount of \$924.00.

IT
IS SO ORDERED, Moving Defendant TO GIVE NOTICE.

August 18, 2026

Judge of the Superior Court